

FIRST ENDORSEMENT

Chief Prosecutor, Administrative Prosecution Unit, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, August 5, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in PODS No. C-033386 against Police Officer Enmanuel Diazsantana, Tax Registry No. 965047. The case was conferenced on July 29, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble Sr., who approved the negotiated settlement of a Schedule "B" Command Discipline and the forfeiture of ten (10) vacation days. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-033386BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIAZSANTANA	FIRST ENMANUEL	M.I.	COMMAND 266
SHIELD NO. 11556	TAX REGISTRY NO. 965047	SOCIAL SECURITY NO.	DATE APPOINTED	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Enmanuel DIAZSANTANA, on or about October 10, 2023, at approximately 1524, while assigned to 043 DET and on duty, in the vicinity of White Plains Road and Lafayette Avenue, Bronx County, wrongfully used force, in that Police Officer Diazsantana tased § 87(2)(b) without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondent's command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 It is recommended that the Respondent forfeit the amount of vacations days as indicated.
2. Police Officer Enmanuel DIAZSANTANA, on or about October 10, 2023, at approximately 1524, while assigned to 043 DET and on duty, in the vicinity of White Plains Road and Lafayette Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that Police Officer Diazsantana failed to activate his body-worn camera when required to so, without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER

08/14/2025
DATE

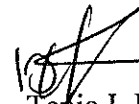
POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

9/17/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, August 14, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-033386 (CCRB Case No. 202407921) against Police Officer Emmanuel Diaz-Santana, Tax No. 965047, with the recommendation that the Charges and Specifications against Police Officer Diaz-Santana be dismissed and that Police Officer Diaz-Santana receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Paul M. Gamble, Sr. reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

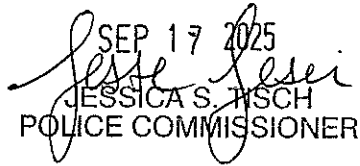


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

SEP 17 2025

JESSICA S. TISCH
POLICE COMMISSIONER